Affiliate Contract

Prepared for:
Alexy Durand, CEO

Created by:
Mathurin Blouin, CEO
Meta Football League

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This Affiliate Contract (this “Contract” or this “Affiliate Contract”), is entered into and made effective as of **April 01, 2024** (the “Effective Date”), by and between:

(1) **Meta Football League**, a company registered in France under SIRET 92220026600018, located at 9 rue des Colonnes, 75002 Paris, FRANCE represented by Mathurin Blouin (CEO) hereafter known as the “**Customer**” and

(2) **Alexy Durand**, a company registered in France under SIRET 90784172000010 , located at 253 Rue de la Croix Rouge 69360 Solaize, FRANCE represented by Alexy Durand hereafter known as the “**Affiliate**”

Whereas:

Now therefore, in consideration of the foregoing, and the mutual promises herein contained, the parties hereby agree as follows:

Description of Services

The Affiliate shall market, promote, and direct potential customers to the products and/or services (the "Services") of the Customer using specific URLs provided by the Customer.

The Affiliate will use its best efforts to actively and effectively advertise, market and promote the Services as widely and aggressively as possible.

Additionally, the Affiliate commits to delivering services outlined below:

- 1 live Twitch with dedicated Customer content (weekly)
- 2 Tweets (weekly)
- 1 presentation Youtube video (monthly)

The Affiliate must at all time incorporate Customer mentions and use its unique affiliate tracking link into all publications. All content must be new and unpublished. The Affiliate further undertakes not to remove these publications from their profiles or social channels for a minimum of one year, barring force majeure or professional activity abandonment.

The Affiliate also agrees to maximum one (1) round of edits and republish within seven (7) days of publishing if the content falls short of the Agreement or adversely affects the Customer's image. Any failure to comply with the above can lead to Agreement breach and impact payments.

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Commission

The Customer shall pay the Affiliate a commission based on the “Net Revenue” generated from new customers directed by the Affiliate's efforts. The "Net Revenue" shall be defined as: the monthly purchases by customers directed by the Affiliate made on the Primary Market, less any chargebacks (credit card refunds), secondary sales (user-to-users), credits given to customers, processing fees, and sales tax. A cap will be applied to the "Net Revenue" calculation, excluding revenue from users after one year of their account creation on the MFL platform.

The commission rate will be a percentage of Net Revenue. This percentage will be defined each month based on the number of new paying users that bought a MFL Club and brought by the Affiliate (“New Club Owners”), as shown in Table 1 below.

New Club Owner	Percentage of Net Revenue
0	5%
1-10	10%
11-20	12%
21+	15%

Table 1

On top of it, Affiliate will receive an extra 10% on primary sales of Clubs.

Commission will not be paid on sales taxes, duties, or any other charges related to the sale of the Services.

For the first 3-month of the contract (April, May and June), Affiliate will be guaranteed a 350€/month minimum commission.

Duration of the Contract

This Agreement shall begin on April 01, 2024 for 3 months duration. The agreement can be prolonged under the same terms directly by email.

Payment Terms and Schedule

The commission will be paid on a monthly basis, within 30 days following the reception of the

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Affiliate invoice. The Affiliate shall receive a monthly report detailing the Net Revenue and calculation of the commission.

Terms and Conditions

This Affiliate Contract is governed by the terms and conditions provided here and in **Attachment A**, attached hereto.

IN WITNESS WHEREOF, by their respective signatures below, the parties have caused the Contract, inclusive of Attachment A, to be duly executed and effective as of the Effective Date.

For and on behalf of Affiliate	For and on behalf of Customer
Name: Alexy Durand, CEO	Name: Mathurin Blouin, CEO
Date: 06/04/2024	Date: 06/04/2024
Signature: Durand	Signature: Mathurin Blouin

Attachment A

Affiliate Contract Terms and Conditions

1. Intellectual Property Rights

Retained rights

Each party will retain all right, title, and interest in and to its own Pre-Existing Intellectual Property irrespective of any disclosure of such Pre Existing Intellectual Property to the other party, subject to any licenses granted herein.

Pre-existing intellectual property

Affiliate will not use any Affiliate or third party Pre-Existing Intellectual Property in connection with this Contract unless Affiliate has the right to use it for Customer's benefit. If Affiliate is not the owner of such Pre Existing Intellectual Property, Affiliate will obtain from the owner any rights as are necessary to enable Affiliate to comply with this Contract.

Affiliate grants Customer a non exclusive, royalty free, worldwide, perpetual and irrevocable license in Affiliate and third party Pre Existing Intellectual Property, to the extent such Pre-Existing Intellectual Property is incorporated into any Deliverable, with the license including the right to make, have made, sell, use, reproduce, modify, adapt, display, distribute, make other versions of and disclose the property and to sublicense others to do these things.

Affiliate will not incorporate any materials from a third party, including Open Source or freeware, into any Deliverable unless (i) Affiliate clearly identifies the specific elements of the Deliverable to contain third party materials, (ii) Affiliate identifies the corresponding third party licenses and any restrictions on use thereof, and (ii) approval is given by Customer in writing.

Affiliate represents, warrants and covenants that Affiliate has complied and shall continue to comply with all third party licenses (including all open source licenses) associated with any software components that will be included in the Deliverables or any other materials supplied by Affiliate.

Affiliate shall indemnify Customer against any losses and liability incurred by Customer due to failure of Affiliate to meet any of the requirements in any of the third party licenses.

Ownership of deliverables

Subject to Affiliate and third party rights in Pre Existing Intellectual Property, all Deliverables, whether complete or in progress, and all Intellectual Property Rights related thereto shall

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belong to Customer, and Affiliate hereby assigns such rights to Customer.

Affiliate agrees that Customer will own all patents, inventor's certificates, utility models or other rights, copyrights or trade secrets covering the Deliverables and will have full rights to use the Deliverables without claim on the part of Affiliate for additional compensation and without challenge, opposition or interference by Affiliate and Affiliate will, and will cause each of its Personnel to, waive their respective moral rights therein.

Affiliate will sign any necessary documents and will otherwise assist Customer in securing, maintaining and defending copyrights or other rights to protect the Deliverables in any country.

No rights to customer intellectual property

Except for the limited license to use materials provided by Customer as may be necessary in order for Affiliate to perform Services under this Contract, Affiliate is granted no right, title, or interest in any Customer Intellectual Property.

2. Confidentiality

Confidential information

For purposes of this Contract, "Confidential Information" shall mean information or material proprietary to a Party or designated as confidential by such Party (the "Disclosing Party"), as well as information about which a Party (the "Receiving Party") obtains knowledge or access, through or as a result of this Contract (including information conceived, originated, discovered or developed in whole or in part by Affiliate hereunder).

Confidential Information does not include:
a) information that is or becomes publicly known without restriction and without breach of this Contract or that is generally employed by the trade at or after the time the Receiving Party first learns of such information;
b) generic information or knowledge which the Receiving Party would have learned in the course of similar employment or work elsewhere in the trade;
c) information the Receiving Party lawfully receives from a third party without restriction on disclosure and without breach of a nondisclosure obligation;
d) information the Receiving Party rightfully knew prior to receiving such information from the Disclosing Party to the extent such knowledge was not subject to restrictions on further disclosure;
or (e) information the Receiving Party develops independent of any information originating from the Disclosing Party.

Customer confidential information

The following constitute Confidential Information of Customer and should not be disclosed to

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third parties: the Deliverables, discoveries, ideas, concepts, software in various states of development, designs, drawings, specifications, techniques, models, data, source code, source files and documentation, object code, documentation, diagrams, flow charts, research, development, processes, procedures, "know-how", marketing techniques and materials, marketing and development plans, customer names and other information related to customers, price lists, pricing policies and financial information, this Contract and the existence of this Contract, and any work assignments authorized or issued under this Contract.

Affiliate will not use Customer's name, likeness, or logo (Customer's "Identity"), without Customer's prior written consent, to include use or reference to Customer's Identity, directly or indirectly, in conjunction with any other clients or potential clients, any client lists, advertisements, news releases or releases to any professional or trade publications.

Non-Disclosure

The Parties hereby agree that during the term hereof and at all times thereafter, and except as specifically permitted herein or in a separate writing signed by the Disclosing Party, the Receiving Party shall not use, commercialize or disclose Confidential Information to any person or entity.

Upon termination, or at any time upon the request of the Disclosing Party, the Receiving Party shall return to the Disclosing Party all Confidential Information, including all notes, data, reference materials, sketches, drawings, memorandums, documentations and records which in any way incorporate Confidential Information.

Right to disclose

With respect to any information, knowledge, or data disclosed to Customer by the Affiliate, the Affiliate warrants that the Affiliate has full and unrestricted right to disclose the same without incurring legal liability to others, and that Customer shall have full and unrestricted right to use and publish the same as it may see fit.

Any restrictions on Customer's use of any information, knowledge, or data disclosed by Affiliate must be made known to Customer as soon as practicable and in any event agreed upon before the start of any work.

3. Conflict of Interest

Affiliate represents that its execution and performance of this Contract does not conflict with or breach any contractual, fiduciary or other duty or obligation to which Affiliate is bound. Affiliate shall not accept any work from Customer or work from any other business organizations or entities which would create an actual or potential conflict of interest for the Affiliate or which is detrimental to Customer's business interests.

4. Termination

Rights to Terminate

1. Customer may terminate this Contract and/or any open projects immediately for cause if the Affiliate fails to perform any of its obligations under this Contract or if Affiliate breaches any of the warranties provided herein and fails to correct such failure or breach to Customer's reasonable satisfaction within ten (10) calendar days (unless extended by Customer) following notice by Customer. Customer shall be entitled to seek and obtain all remedies available to it in law or in equity.

2. Upon termination of any project or work given Affiliate hereunder, Affiliate will immediately provide Customer with any and all work in progress or completed prior to the termination date. As Customer's sole obligation to Affiliate resulting from such termination, Customer will pay Affiliate an equitable amount as determined by Customer for the partially completed work in progress and the agreed to price for the completed Services and/or Deliverables provided and accepted prior to the date of termination.

3. Upon termination or expiration of this Contract or a project performed by Affiliate hereunder, whichever occurs first, Affiliate shall promptly return to Customer all materials and or tools provided by Customer under this Contract and all Confidential Information provided by Customer to Affiliate.

4. Any provision or clause in this Contract that, by its language or context, implies its survival shall survive any termination or expiration of this Contract.

5. Warranties

Affiliate warrants that:

1. the Services and Deliverables are original and do not infringe upon any third party's patents, trademarks, trade secrets, copyrights or other proprietary rights,

2. it will perform the Services hereunder in a professional and workmanlike manner,

3. the Deliverables Affiliate provides to Customer are new, of acceptable quality free from defects in material and workmanship and will meet the requirements and conform with any specifications agreed between the parties,

4. it has all necessary permits and is authorized to do business in all jurisdictions where Services are to be performed,

5. it will comply with all applicable federal and other jurisdictional laws in performing the Services,

6. it has all rights to enter into this Contract and there are no impediments to Affiliate's

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execution of this Contract or Affiliate's performance of Services hereunder.

6. Limitation of Liability

Except as set forth in this section below, in no event will either party be liable for any special, indirect, incidental, or consequential damages nor for loss of data, profits or revenue, cost of capital or downtime costs, nor for any exemplary or punitive damages, arising from any claim or action, incidental or collateral to, or directly or indirectly related to or in any way connected with, the subject matter of the agreement, whether such damages are based on contract, tort, statute, implied duties or obligations, or other legal theory, even if advised of the possibility of such damages.

Notwithstanding the foregoing, any purported limitation or waiver of liability shall not apply to the contractor's obligation under the indemnification or confidential information sections of this agreement or either party's liability to the other for personal injury, death, or physical damage to property claims.

7. Inspection and Acceptance

Non-conforming services and deliverables

If any of the Services performed or Deliverables delivered do not conform to specified requirements, Customer may require the Affiliate to perform the Services again or replace or repair the non conforming Deliverables in order to bring them into full conformity with the requirements, at Affiliate's sole cost and expense.

When the defects in Services and/or Deliverables cannot be corrected by re-performance, Customer may: (a) require Affiliate to take necessary action, at Affiliate's own cost and expense, to ensure that future performance conforms to the requirements and/or (b) reduce any price payable under the applicable project to reflect the reduced value of the Services performed and/or Deliverables delivered by Affiliate and accepted by Customer.

If Affiliate fails to promptly conform the Services and/or Deliverables to defined requirements or specifications, or take action deemed by Customer to be sufficient to ensure future performance of the project in full conformity with such requirements, Customer may (a) by contract or otherwise, perform the services or subcontract to another Affiliate to perform the Services and reduce any price payable by an amount that is equitable under the circumstances and charge the difference in re-procurement costs back to Affiliate and/or (b) terminate the project and/or this Contract for default.

8. Insurance

Affiliate shall maintain adequate insurance coverage and minimum coverage limits for its business as required by any applicable law or regulation, including Workers' Compensation insurance as required by any applicable law or regulation, or otherwise as determined by Affiliate in its reasonable discretion. Affiliate's lack of insurance coverage shall limit any liability Affiliate may have under this Contract.

10. Miscellaneous

Assignment

Affiliate shall not assign any rights of this Contract or any other written instrument related to Services and/or Deliverables provided under this Contract, and no assignment shall be binding without the prior written consent of Customer. Subject to the foregoing, this Contract will be binding upon the Parties' heirs, executors, successors and assigns.

Governing law

The Parties shall make a good-faith effort to amicably settle by mutual agreement any dispute that may arise between them under this Contract. The foregoing requirement will not preclude either Party from seeking injunctive relief as it deems necessary to protect its own interests. This Contract will be construed and enforced in accordance with the laws of the State of France, excluding its choice of law rules.

Severability

The Parties recognize the uncertainty of the law with respect to certain provisions of this Contract and expressly stipulate that this Contract will be construed in a manner that renders its provisions valid and enforceable to the maximum extent possible under applicable law.

To the extent that any provisions of this Contract are determined by a court of competent jurisdiction to be invalid or unenforceable, such provisions will be deleted from this Contract or modified so as to make them enforceable and the validity and enforceability of the remainder of such provisions and of this Contract will be unaffected.

Independent contractor

Nothing contained in this Contract shall create an employer and employee relationship, a master and servant relationship, or a principal and agent relationship between Affiliate and

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Customer. Customer and Affiliate agree that Affiliate is, and at all times during this Contract shall remain, an independent contractor.

Force majeure

Neither Party shall be liable for any failure to perform under this Contract when such failure is due to causes beyond that Party's reasonable control, including, but not limited to, acts of state or governmental authorities, acts of terrorism, natural catastrophe, fire, storm, flood, earthquakes, accident, and prolonged shortage of energy.

In the event of such delay the date of delivery or time for completion will be extended by a period of time reasonably necessary by both Affiliate and Customer. If the delay remains in effect for a period in excess of thirty days, Customer may terminate this Contract immediately upon written notice to Affiliate.

Entire contract

This document and all attached or incorporated documents contains the entire agreement between the Parties and supersedes any previous understanding, commitments or agreements, oral or written. Further, this Contract may not be modified, changed, or otherwise altered in any respect except by a written agreement signed by both Parties.

For and on behalf of Affiliate

Name: Alexy Durand, CEO

Date: 06/04/2024

Signature:

Durand

For and on behalf of Customer

Name: Mathurin Blouin, CEO

Date: 06/04/2024

Signature:

Mathurin Blouin

Titre	Contrat Affiliation - MFL x Thork
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Historique du document

ENVOYÉ	**04 / 06 / 2024** 16:11:47 UTC	Envoyé pour signature à Alexy Durand (alexy.durand69@gmail.com) and MFL (mathurin@playmfl.com) depuis mathurin@playmfl.com IP: 82.124.103.82
CONSULTÉ	**04 / 07 / 2024** 08:02:11 UTC	Consulté par Alexy Durand (alexy.durand69@gmail.com) IP: 88.172.142.69
SIGNÉ	**04 / 07 / 2024** 08:03:15 UTC	Signé par Alexy Durand (alexy.durand69@gmail.com) IP: 88.172.142.69
CONSULTÉ	**04 / 17 / 2024** 13:14:52 UTC	Consulté par MFL (mathurin@playmfl.com) IP: 62.23.201.134
SIGNÉ	**04 / 17 / 2024** 13:15:22 UTC	Signé par MFL (mathurin@playmfl.com) IP: 62.23.201.134
TERMINÉ	**04 / 17 / 2024** 13:15:22 UTC	Le document a été terminé.